

Public Education Act

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Text in Bulgarian: Закон за народната просвета

Chapter One GENERAL PROVISIONS

Article 1

This Act shall regulate the structure, functions and management of the system of public education.

Article 2

The system of public education shall include kindergartens, schools and auxiliary units.

Article 3

The system of public education shall ensure education in conformity with state educational requirements.

Article 4

(1) All citizens shall have the right to education. They shall be entitled to constantly heighten their education and qualifications.

(2) Restrictions or privileges based on race, nationality, sex, ethnic and social origin, religion and social status shall be inadmissible.

Article 4a

(New, SG No. 41/2006)

(1) The right to education shall be exercised in full compliance with the principles of transparency of the management and predictability of the development of the public education system.

(2) The conditions and the procedure for the completion of a certain grade, stage or degree of education, and for the transition to the next grade, stage or degree of education shall be stipulated by the beginning of the respective academic year at the latest.

Article 5

Education shall be secular.

Article 6

Education in state-owned and municipal schools shall be free of charge.

Article 7

(1) Schooling up to the age of 16 shall be compulsory.

(2) (Amended SG No. 36/1998) Schooling shall start at the age of 7, where such age shall have been attained in the year of enrolment in the first (1st) grade. Children who have turned 6 shall also be entitled to enrolment in the first (1st) grade provided their physical and mental development, at their parents' or guardians' discretion, so allows.

Article 8

(1) (Amended SG No. 36/1998) Bulgarian shall be the official language of instruction in kindergartens, schools and auxiliary units. Schooling shall ensure favourable conditions for the mastery of the literary Bulgarian language.

(2) (Amended SG No. 36/1998) Pupils whose mother tongue is not Bulgarian, besides the compulsory study of the Bulgarian language, shall have the right to study their own mother tongue in the municipal schools under the protection and control of the state.

Article 9

(1) Every citizen shall exercise his right to education in the school and type of education of his choice in keeping with his personal preferences and potential.

(2) The right pursuant to Paragraph (1) for minors shall be used by their parents or guardians.

Article 10

(Amended SG No. 36/1998)

(1) Kindergartens and schools shall be state-owned, municipal and private. Auxiliary

units shall be state-owned and municipal.

(2) State-owned shall be such kindergartens, schools and auxiliary units that are of national significance and are financed by the state budget through the Ministry of Education, Youth and Science, or through other ministries and agencies as well. Any real estate and/or other property placed at their disposal shall be public state property.

(3) (New, SG No. 35/2009, effective 12.05.2009) The kindergartens under the Ministry of Defence intended for education, upbringing and rearing children of servicemen and civilian employees of the Ministry of Defence and financed from the Ministry's budget shall also be state-owned. The properties granted for their use shall be public state property.

(4) (Renumbered from Paragraph 3 - SG No. 35/2009, effective 12.05.2009) Municipal shall be all kindergartens, schools and auxiliary units that are financed by the municipal budgets. Any real estate and/or other property placed at their disposal shall be public municipal property.

(5) (Renumbered from Paragraph 4 - SG No. 35/2009, effective 12.05.2009) All state-owned and municipal kindergartens, schools and auxiliary units shall be legal entities.

(6) (Renumbered from Paragraph 5 - SG No. 35/2009, effective 12.05.2009) State-owned kindergartens, state-owned and municipal schools and auxiliary units shall be opened, transformed and closed by executive order of the Minister of Education, Youth and Science. Municipal schools and auxiliary units shall be opened, transformed and closed by executive order of the Minister of Education, Youth and Science on the respective municipal council's motion.

(7) (New, SG No. 50/2010, effective school year 2011-2012) The state-owned sports schools shall be opened, transformed and closed by an order of the Minister of Education, Youth and Science after coordination with the Minister of Physical Education and Sports. Municipal sports schools shall be opened, transformed and closed by an order of the Minister of Education, Youth and Science on a motion of the municipal council and after coordination with the Minister of Physical Education and Sports.

(8) (Renumbered from Paragraph 6, supplemented, SG No. 35/2009, effective 12.05.2009, renumbered from Paragraph 7, SG No. 50/2010) Municipal kindergartens shall be opened, transformed and closed by executive order of the respective municipality's mayor following a decision of the municipal council. The state-owned kindergartens under paragraph 3 shall be opened, transformed and closed following an order of the Minister of Defence in coordination with the Minister of Education, Youth and Science.

(9) (Renumbered from Paragraph 7, SG No. 35/2009, effective 12.05.2009, renumbered from Paragraph 8, SG No. 50/2010) State-owned and municipal kindergartens, schools and auxiliary units shall achieve the status of legal entities, or shall cease to function as of the day of promulgation of the executive order to that effect in the State Gazette, unless otherwise provided therein.

Article 11

(Amended SG No. 36/1998)

(1) Private shall be all kindergartens and schools that are opened or transformed at the request of Bulgarian natural or legal entities and are not budgeted by the state.

(2) The persons specified under Paragraph (1) above shall submit to the Ministry of Education, Youth and Science all documents prescribed by the Rules for the implementation of this Act.

(3) Private kindergartens and schools shall be opened or transformed by executive order of the Minister of Education, Youth and Science and shall achieve the status of legal entities as of the day of promulgation of the executive order to that effect in the State Gazette.

(4) (Supplemented, SG No. 124/1998) Private kindergartens and schools shall make use of private pieces of property, or of holdings placed at their disposal that are public state or public municipal property or properties granted pursuant to procedures under Article 16, Paragraph 2 of the State Property Act, respectively the procedures of the Municipal Property Act.

(5) Any real estate or holdings placed at a kindergarten's or a school's disposal under the terms of Paragraph (4) above shall only be used for performing such activities that constitute the nature of their business and shall not be leased out to third parties or used for any other purpose.

Article 12

(Amended SG No. 36/1998)

(1) Bulgarian kindergartens and schools with foreign participation shall be opened or transformed at the request of associations, or corporations, or companies of Bulgarian and foreign natural and/or legal entities, duly registered in the Republic of Bulgaria, by decision of the Council of Ministers on a motion by the Minister of Education, Youth and Science.

(2) Foreign kindergartens and schools shall be opened or transformed at the request of foreign legal entities in accordance with international agreements and conventions and under the provisions of Paragraph (1) above.

(3) The persons specified under Paragraphs (1) and (2) above shall submit to the Ministry of Education, Youth and Science all documents prescribed by the Rules for the implementation of this Act.

(4) Kindergartens and schools specified under Paragraphs (1) and (2) above shall achieve the status of legal entities as of the day of promulgation of the executive order to that effect in the State Gazette.

(5) (Supplemented, SG No. 124/1998) Kindergartens and schools specified under Paragraphs (1) and (2) shall make use of private holdings, or of holdings placed at their disposal that are public state or public municipal property, or properties granted pursuant to procedures under Article 16, Paragraph 2 of the State Property Act, respectively the procedures of the Municipal Property Act.

(6) Any real estate or holdings placed at a kindergarten's or a school's disposal under the terms of Paragraph (5) above shall only be used for performing such activities that constitute the nature of their business and shall not be leased out to third parties or used for any other purpose.

Article 13

(Amended SG No. 36/1998)

(1) Kindergartens and schools specified under Articles 11 and 12 hereof shall be closed:

1. in the event it has been ascertained that the requirements stipulated in this Act and in the Rules for the implementation thereof have not been satisfied;

2. in the event of death of the natural person who had been granted the authorisation to open the kindergarten or school in question, or in the event such person has been sentenced to imprisonment for a premeditated crime or felony;

3. in the event of termination of the activities of the juridical person that had been granted the authorisation to open the kindergarten or school in question.

(2) In any of the cases presented in Paragraph (1), items 2 and 3 above, a kindergarten or a school shall not be necessarily closed provided any third person(s) submit(s) to the Ministry of Education, Youth and Science, within one (1) month of the occurrence of the circumstances indicated hereinabove, all documents prescribed by the Rules for the implementation of this Act to continue their operations.

(3) Kindergartens and schools specified under Paragraph (1) above may also be closed at the request of the persons representing them.

(4) Students from any school closed under the terms of Paragraphs (1) and (3) above shall be entitled to continue their education in other schools under such terms and conditions as shall be prescribed in an ordinance enacted by the Minister of Education, Youth and Science.

(5) Any act decreeing a closure shall be issued in accordance with the terms set forth in Paragraphs (1), (2), (3) and (4) above by the authority which has granted the authorisation to open the kindergarten or the school in question and shall be promulgated in the State Gazette.

Article 14

Schools and kindergartens shall create conditions for the normal physical and mental development of children and pupils.

Chapter Two

STATE EDUCATIONAL REQUIREMENTS

Article 15

(Paragraph 1, repealed, renumbered from Paragraph 2, SG No. 36/1998)

State educational requirements shall determine the levels of indispensably required general education and vocational training, and shall also ensure favourable conditions for:

1. (Amended, SG No. 90/2002) formation of free, moral and enterprising personalities who, as Bulgarian citizens respect the laws, as well as any other individual's rights, culture, language and religion;

2. satisfaction of any individual interests and needs, and acquisition of broad general knowledge;

3. attainment of basic scientific concepts and principles for integrating past experience with new knowledge in the different spheres of science and practice;

4. choice of options for training and vocational qualifications in accordance with the students' potential and the schools chosen by them;

5. enhancement of the physical resources and the cultural and natural environment of all kindergartens, schools and auxiliary units.

Article 16

(Amended SG No. 36/1998)

State educational requirements shall be applicable to:

1. pre-school education and training;

2. educational degrees, the general educational minima and the curriculum;

3. content of instruction and educational courses;

4. efficient and effective learning of the literary Bulgarian language;

5. system and methods of assessment;

6. vocational education and training;

7. attainment of professional qualifications in the various vocations;

8. (Amended, SG No. 90/2002) teaching of children and pupils with special educational needs and/or chronic diseases;

9. school textbooks and learning aids;

10. documentation applicable in the system of public education;

11. extracurricular and out-of-school activities;

12. teaching certificates and teachers' professional qualifications;
13. material and technical facilities of the schools;
14. provision of health care;
15. ensuring safe conditions for education and work;
16. scientific, information and library services;
17. annual cost of education per child and pupil/student in state-owned and municipal kindergartens, schools and auxiliary units;
18. standardisation and remuneration of labour in the system of public education
19. (New, SG No. 90/2002) inspection of the public education system.

Article 17

(Amended SG No. 36/1998)

State educational requirements under Article 16 above shall be adopted and enacted as follows:

1. under items 2 and 6 - by act;
2. (Amended, SG No. 90/2002) under items 9, 12, 13, 14, 15, 17 and 18 - by ordinances issued by the Council of Ministers;
3. under items 7, 8 and 10 - by ordinances issued by the Minister of Education, Youth and Science in co-ordination with the respective ministries and agencies;
4. (Amended, SG No. 90/2002) under items 1, 3, 4, 5, 11, 16 and 19 - by ordinances issued by the Minister of Education, Youth and Science.

Chapter Three KINDERGARTENS

Article 18

(1) (Amended SG No. 36/1998) Kindergartens shall be made available to pre-school children from the age of 3 to the moment of enrolment in the first (1st) grade.

(2) (Repealed, SG No. 90/2002 - enters into force as from 2003/2004 school year).

Article 19

(1) (Amended SG No. 36/1998) Costs of child care in state-owned and municipal kindergartens shall be borne by the state or municipal budget, respectively.

(2) (Amended SG No. 36/1998, supplemented, SG No. 78/2010, effective 2010/2011 school year) Parents or guardians shall pay fees in such amounts as shall be fixed by the respective municipal council in accordance with the Local Taxes and Fees Act.

(3) (Supplemented, SG No. 78/2010, effective 2010/2011 school year) Besides the fee pursuant to Paragraph (2), parents or guardians shall also pay for activities outside the state educational requirements.

(4) (New, SG No. 35/2009, effective 12.05.2009, repealed, SG No. 23/2011, effective 22.03.2011).

Article 20

(Amended, SG No. 36/1998, SG No. 90/2002, effective 2003/2004 school year, supplemented, SG No. 86/2003, amended, SG No. 78/2010, effective 2010/2011 school year)

(1) Preschooling of children 2 years prior to their enrolment in the (1st) grade shall be compulsory but not prior to the year in which they turn 5 years old.

(2) Preschooling of children under Paragraph 1 shall be carried out in preparatory groups at the kindergartens or preparatory groups at the schools and for this training parents and guardians shall not pay any fees.

(3) Preschooling of children under Paragraph 1 shall be carried out while observing the following requirements:

1. ensured environment which conforms to the age-related peculiarities of the children and which guarantees their physical and mental health and their well-being;

2. ensured teachers and assistant supervisors, who meet the requirements of the occupied position set forth in this Act and in the Regulations for its Implementation;

3. all-day or half day organisation of preschooling which shall also include recreational activities for the children;

4. ensured canteen catering, organised in accordance with the requirements stipulated in ordinances of the Minister of Health in the cases of all-day preschooling;

5. ensured transportation free of charge in the cases under Article 26, Paragraph 3.

(4) Preschooling under Paragraph 1 shall be carried out under the terms and conditions set forth by this Act, the Regulations for its implementation and the state educational requirements as per Article 16, item 1 hereof.

(5) Special methodology for learning Bulgarian language shall be provided to the children who are not fluent in Bulgarian, besides the training under Paragraph (1).

Article 20a

(New, SG No. 90/2002, effective 2003/2004 school year)

(1) (Supplemented, SG No. 35/2009, effective 12.05.2009) Children shall be enrolled in kindergartens at the free will and choice of their parents or guardians, except for the cases under Article 10, paragraph 3 and Article 20, Paragraph (1).

(2) (Amended, SG No. 78/2010) In the cases under Article 20, Paragraph (1), parents or guardians may choose whether the preschooling shall take place in a preparatory group at the kindergarten or at school.

(3) (New, SG No. 35/2009, effective 12.05.2009) Children of servicemen and civilian employees of the Ministry of Defence shall have priority of admittance to the state-owned kindergartens under the Ministry of Defence.

Article 21

(Amended, SG No. 90/2002)

(1) Children with special educational needs and/or chronic diseases shall be enrolled at kindergartens pursuant to Article 18.

(2) Kindergartens under Paragraph (1) shall be obligated to accept children with special educational needs and/or chronic diseases.

(3) Special kindergartens and auxiliary units may also be established for children with special educational needs and/or chronic diseases.

(4) Children with special educational needs and/or chronic diseases shall be enrolled in the kindergartens and auxiliary units under Paragraph (3) only where all other opportunities for education at state-owned or municipal kindergartens and auxiliary units have been exhausted and where the parents or guardians have expressed such a wish in writing.

Chapter Four SCHOOLS

Article 22

(Amended SG No. 36/1998)

(1) (New, SG No. 90/2002) The school education shall provide for the education and upbringing of pupils in accordance with social needs and individual capabilities and expectations for successful self-fulfilment in civil society.

(2) (Renumbered from Paragraph 1, SG No 90/2002) School education in terms of degree shall be basic and secondary, while in terms of the content of instruction it shall be general and vocational.

(3) (Renumbered from Paragraph 2, SG No 90/2002) General education shall ensure the acquisition of the general educational minima and, where possible, specialised training in

accordance with the state educational requirements.

(4) (Renumbered from Paragraph 3, SG No 90/2002) Vocational education shall ensure the acquisition of the general educational minima as, well as the attainment of professional qualifications in a certain vocation in accordance with the state educational requirements.

(5) (Renumbered from Paragraph 4, SG No 90/2002) Vocational education shall ensure the attainment of professional qualifications in a certain vocation in accordance with the state educational requirements.

Article 23

(Amended SG No. 36/1998)

(1) Basic education shall be provided in two stages: primary embracing grades one (1) to four (4) inclusive, and elementary (lower secondary, junior high) including grades five (5) to eight (8).

(2) Anyone who has completed the primary stage of basic education shall be granted a certificate of completed fourth (4th) grade.

(3) Attainment of basic education shall be attested by a certificate of completed basic education, which shall be conclusive.

(4) A certificate of basic education shall be issued upon successful completion of the eighth (8th) grade and shall entitle to education beyond the basic level or to vocational training.

Article 24

(Amended, SG Nos. 36/1998, 90/2002, amended and supplemented,

SG No. 95/2002, SG No. 29/2003, amended SG No. 40/2004)

(1) (Supplemented, SG, No. 105/2006) Secondary education shall be attained upon the successful completion of the twelfth (12th) grade and after passing state matriculation examinations in subjects or cycles of subjects studied during the secondary school course and shall be certified by a secondary school diploma, specifying also the total score. Such diploma shall be conclusive and shall entitle its holder to post-secondary education or to vocational training.

(2) (New, SG No. 50/2008) State matriculation examinations shall measure the results achieved, including knowledge, skills, attitudes or competences, in the training by subjects or cycles of subjects in the compulsory secondary education training, regardless of the duration of the stage or the number of classes envisaged for the respective subject or cycle of subjects.

(3) (Supplemented, SG, No. 105/2006 renumbered from Paragraph 2, SG No. 50/2008) The state matriculation examinations under Paragraph 1 shall be two, one of them being in the Bulgarian language and literature, the other one being selected at the choice of the pupil among the following subjects: foreign language, mathematics, physics and astronomy,

biology and health education, chemistry and environmental protection, history and civilisation, and geography and economics, as well as the philosophy cycle of subjects, taught in the classes for the compulsory general educational training.

(4) (Amended SG No. 41/2006, No. 105/2006, renumbered from Paragraph 3, amended, SG No. 50/2008) Pupils shall be free to sit for a state matriculation examination also on a subject or a cycle of subjects of his or her choice under Paragraph 3.

(5) (New, SG No. 50/2008) The secondary education diploma of pupils trained under an international agreement envisaging an examination upon the completion of the secondary education course in the official language or in an official language of the State Party to the agreement, the section for the second compulsory state matriculation examination shall feature, if they so wish, the grade of the examination in the language under the international agreement. These provisions shall apply to the cases, where the language of the State Party to the agreement is among the foreign languages in which a state matriculation examination may be sat for in the subject "foreign language" under the Bulgarian laws. These provisions shall not apply to examinations which are not graded in a way that makes it possible for the result to be made equivalent to the grading system used in the public education of the Republic of Bulgaria.

(6) (New, SG No. 105/2006, renumbered from Paragraph 4, amended, SG No. 50/2008) The secondary education diploma of the students who are educated to obtain vocational education shall include, if they so wish, the average grade of the state examinations for acquiring vocational qualification in the section under paragraph 4.

(7) (Renumbered from Paragraph 4, SG, No. 105/2006, renumbered from Paragraph 5, amended, SG No. 50/2008) The state matriculation examinations under Paragraph 3 shall be held on the basis of curricular examination questionnaires covering the subject matter, the content of which has been studied as part of the compulsory training programme pursuant to Article 15, Paragraph 2 of the Level of Education, General Education Minimum and Curriculum Act.

(8) (Amended SG No. 41/2006, renumbered from Paragraph 5, SG, No. 105/2006, renumbered from Paragraph 6, amended, SG No. 50/2008) The state matriculation examination under Paragraph 4 shall be based on curricular examination questionnaires, covering the subject matter for the compulsory general training programme.

(9) (Renumbered from Paragraph 6, amended, SG, No. 105/2006, renumbered from Paragraph 7, amended, SG No. 50/2008) Curricular examination questionnaires under Paragraphs 7 and 8 shall be adopted by Ordinance of the Minister of Education, Youth and Science.

(10) (New SG No. 41/2006, renumbered from Paragraph 7, SG, No. 105/2006, renumbered from Paragraph 8, SG No. 50/2008) The Minister of Education, Youth and Science shall endorse with an order specimen examination materials for the state matriculation examinations, which shall be posted on the official website of the Ministry of Education, Youth and Science.

(11) (New SG No. 41/2006, renumbered from Paragraph 8, SG, No. 105/2006, renumbered from Paragraph 9, SG No. 50/2008) The state matriculation examinations on

every subject shall be evaluated by a national examination board comprising school teachers and university lecturers.

(12) (Renumbered from Paragraph 7, supplemented, SG No. 41/2006, renumbered from Paragraph 9, SG, No. 105/2006, renumbered from Paragraph 10, amended, SG No. 50/2008) State matriculation examinations shall be conducted, while observing the existing laws regulating state matriculation examinations as of the time of sitting for these examinations, without any restrictions as to the age or number of sittings. The scoring of the state matriculation examinations shall be with a precision of up to 0.01.

(13) (Renumbered from Paragraph 8, SG No. 41/2006, renumbered from Paragraph 10, SG, No. 105/2006, renumbered from Paragraph 11, SG No. 50/2008) The terms and conditions for the organisation and holding of state matriculation examinations shall be stipulated in an Ordinance of the Minister of Education, Youth and Science.

(14) (Renumbered from Paragraph 9, SG No. 41/2006, renumbered from Paragraph 11, SG, No. 105/2006, renumbered from Paragraph 12, supplemented, SG No. 50/2008) A student who has successfully completed the twelfth (12th) grade and has not sat for or has failed the state matriculation examinations under paragraph 3 shall receive, at his or her choice, the certificate under Article 7, Paragraph 5 of the Level of Education, General Education Minimum and Curriculum Act.

(15) (Renumbered from Paragraph 10, SG No. 41/2006, renumbered from Paragraph 12, SG, No. 105/2006, renumbered from Paragraph 13, SG No. 50/2008) Reattainment of the same educational degree at schools shall be inadmissible.

(16) (Renumbered from Paragraph 11, amended, SG No. 41/2006, renumbered from Paragraph 13, SG, No. 105/2006, renumbered from Paragraph 14, amended, SG No. 50/2008) The terms and conditions for calculating the total score under Paragraph 1 shall be stipulated by the Ordinance under Article 16, item 10.

Article 25

(Amended SG No. 36/1998)

(1) Attainment of vocational education shall be certified by:

1. a diploma as per Article 24, Paragraph (1) hereof;*
2. a certificate of vocational qualifications to be obtained upon completion of vocational training;
3. a certificate evidencing a license granted to engage in businesses and occupations whose practising requires a license.

(2) (Amended, SG No. 90/2002) Completion of vocational training as per Article 22, Paragraph (5) hereof shall be certified by:

1. a certificate as per Article 23, Paragraph (4) hereof;

2. a certificate of vocational qualifications;
3. a certificate evidencing a license to engage in businesses and occupations whose practising requires a license;
4. a certificate of vocational training.

(3) None of the documents specified under Paragraph (2), items 2, 3 and 4 above shall entitle a holder to education at a higher level.

(4) The document specified under Paragraphs (1) and (2) above shall be issued only by a school, unless another competent authority has been also authorised by a statute.

Article 26

(Amended SG No. 36/1998)

(1) There shall exist the following types of schools:

1. primary - including grades 1 to 4;
2. elementary (lower secondary, junior high) - including grades 5 to 8;
3. basic - including grades 1 to 8;
4. gymnasiums (secondary schools) - including grades 9 to 12;
5. (amended, SG No. 67/1999) specialised gymnasiums;
6. secondary schools of general education - including grades 1 to 12;
7. (amended, SG No. 68/1999, SG No 36/2009, effective - school year 2009-2010) vocational gymnasiums and/or technical schools - including grades 8 or 9 to 12;
8. (amended, SG No. 68/1999) vocational - from grade 7 or 8 with an up to 3 year course of instruction, from grade 9 - with an up to 4 year course of instruction and post-secondary Professional Colleges - with an up to 2 year course of instruction;
9. sports schools;
10. arts schools;
11. specialised schools.
12. (new SG No. 41/2006) schools of culture.

(2) Students shall be allowed to move from one school to another under such terms and conditions as shall be prescribed by the Rules for the implementation of this Act.

(3) (New, SG No. 78/2010, effective 2010/2011 school year) Free transportation to the

kindergarten or the school in the closest settlement on the territory of the municipality or the neighbouring municipality shall be provided to children and students subject to compulsory preschooling and schooling in settlements where there are no kindergartens or schools providing preschooling or schooling in the respective grade.

(4) (New, SG No. 90/2002, amended, SG No. 105/2005, renumbered from Paragraph 3, amended, SG No. 78/2010, effective 2010/2011 school year) Students below the age of 16, living in communities where no schools exist, shall be provided with free commuting and/or boarding-house at the local school in the nearest community within the territory of the municipality, or in a neighbouring municipality when this reduces the travel time and/or the expenses for this purpose.

(5) (New, SG No. 50/2008, renumbered from Paragraph 4, amended, SG No. 78/2010, effective 2010/2011 school year) Travelling pupils in grades 1 to 8, studying at the community schools under paragraph 3 shall be provided with all-day organisation of studies and food at the canteen, the financial resources for which shall be allocation in accordance with the financial rules under 3 6c, paragraph 5. Canteen catering shall be organised according to the requirements stipulated in ordinances of the Minister of Health.

(6) (New, SG No. 114/2003, renumbered from Paragraph 4, supplemented, SG No. 50/2008, renumbered from Paragraph 5, amended, SG No. 78/2010, effective 2010/2011 school year, amended, SG No. 99/2011, effective 1.01.2012) The funds for transport costs under paragraphs 3 and 4 and for costs for full-day organisation of the school day and canteen food under paragraph 5 shall be provided as special-purpose funds from the central budget and/or European funds and programmes and shall be granted on the basis of standards approved by the Council of Ministers with the decree on the implementation of the state budget.

Article 26a

(New SG No. 40/2004)

(1) (Supplemented, SG, No. 105/2006) Students shall be enrolled in the eighth grade of the public and municipal schools under Article 26, Paragraph 1, items 5 and 7, as well as in the profiled classes at the schools under Article 26, Paragraph 1, item 6 for intensive foreign language learning after completion of the seventh grade and after checking their capabilities by means of examinations in the form of tests, under terms and conditions stipulated in an ordinance of the Minister of Education, Youth and Science. That Ordinance may also stipulate additional conditions and procedures for admission in certain profiles, specialised vocational domains and schools, including a test of the students' abilities.

(2) Students may be enrolled in the ninth grade of the public and municipal schools under Article 26, Paragraph 1, items 4, 5, 6, 7 and 8 after completion of the eighth grade and after checking their capabilities and/or their documents under the terms and conditions stipulated in the ordinance under Paragraph 1.

(3) (Amended, SG No. 103/2005, No. 41/2006, No. 50/2010, effective school year 2011-2012) Students shall be enrolled in the seventh or eighth grade of the public and municipal schools under Article 26, Paragraph 1, item 9 after checking their capabilities under terms and conditions stipulated in an ordinance of the Minister of Physical Education and

Sports coordinated with the Minister of Education, Youth and Science.

(4) (Amended SG No. 41/2006) Students shall be enrolled in the seventh or eighth grade of the public and municipal schools under Article 26, Paragraph 1, item 10 after checking their capabilities under terms and conditions stipulated in an ordinance of the Minister of Education, Youth and Science and the Minister of Culture.

(5) (New SG No. 41/2006) Students shall be enrolled in the first and eighth grade of the schools under Article 26, Paragraph 1, item 12 after checking their capabilities under terms and conditions stipulated in an ordinance of the Minister of Culture.

(6) (New SG No. 41/2006) Students shall be enrolled in the fifth and eighth grade of the state and municipal schools under Article 26, Paragraph 1, item 5 with science and mathematical and with humanitarian orientation after checking their capabilities under terms and conditions stipulated in an ordinance of the Minister of Education, Youth and Science.

(7) (New SG No. 41/2006) The terms and the conditions for checking the capabilities of the students may not be altered later than the beginning of the respective school year.

Article 27

(Amended, SG No. 90/2002)

(1) Children with special educational needs and/or chronic diseases shall be offered integrated education at the schools under Article 26, Paragraph (1), Items 1 through 10.

(2) Schools under Paragraph (1) shall be obligated to accept children with special educational needs and/or chronic diseases.

(3) Special schools and auxiliary units may also be established for children with special educational needs and/or chronic diseases.

(4) Children with special educational needs and/or chronic diseases shall be enrolled in the schools and auxiliary units under Paragraph (3) only where all other opportunities for education at state-owned or municipal schools have been exhausted and where the parents or guardians have expressed such a wish in writing.

Article 28

(1) (Amended, SG No. 90/2002) All specialised schools for children with special educational needs and/or chronic diseases shall be of the boarding- and semi-boarding-school type.

(2) (Amended, SG No. 90/2002) Children shall be enrolled at the schools specified under Paragraph (1) above following the procedures prescribed by the Ministry of Education, Youth and Science in coordination with the competent state authorities and municipal councils.

(3) Training shall be organised for prison inmates who have not completed secondary education.

Article 29

For persons having attained the age of 16, evening (shift) schools shall also be opened.

Article 30

(1) With the permission of the Minister of Education, Youth and Science, religious institutions in the country may open religious schools for their ritual needs for children who have completed their basic education.

(2) The education received in religious schools shall be granted the same status as secular education by the Ministry of Education, Youth and Science, provided the state educational requirements for the respective level of education have been satisfied.

Article 31

The forms of instruction shall be:

1. day schools;
2. evening schools;
3. extramural (extension) courses;
4. correspondence courses;
5. individual schooling;
6. self-training;
7. (new, SG No. 36/1998) distance courses.

Article 32

(1) Practical training in vocations and specialist fields practised in harmful and dangerous working conditions shall commence after the age of 15 years

(2) The Ministry of Health and the Ministry of Education, Youth and Science shall determine the specific requirements for the practical training of students pursuant to Paragraph (1) above.

Article 33

Schools and auxiliary units within the system of public education shall organise various activities for the children and students in their leisure time and in keeping with their interests and abilities in the fields of arts, science, technology, manufacture and sports.

Article 33a

(New, SG No. 36/1998)

(1) Auxiliary units shall be:

1. scientific and informational;
2. extramural pedagogical institutions;
3. for international programme management;
4. for organised leisure, recreation and sports;
5. (repealed, SG, No. 105/2006, effective 1.01.2007);

6. (new, SG No. 90/2002) for operational management and funding of the public education system.

(2) All auxiliary units shall organise and perform their activities in accordance with Rules and Regulations approved by the Minister of Education, Youth and Science.

Chapter Five

MANAGEMENT AND RESOURCES

Article 34

(1) (New SG No. 41/2006) The National Assembly shall adopt a National Programme for the Development of School and Pre-School Education and Training subject to proposal by the Council of Ministers.

(2) (New SG No. 41/2006) The Programme under Paragraph 1 shall comprise the national priorities and goals for the development of school and pre-school education and training, as well as the measures for their implementation.

(3) (Renumbered from Paragraph 1, SG No. 41/2006) The state policy in the field of education shall be implemented by the Council of Ministers.

(4) (Amended, SG No. 90/2002, renumbered from Paragraph 2, SG No. 41/2006) The Minister of Education, Youth and Science shall be the specialised body for the management of the public education system.

Article 35

(Amended, SG No. 90/2002, SG No. 90/2002)

(1) The Minister of Education, Youth and Science shall exercise control over the activities of all types of kindergartens, schools, auxiliary units at all levels of education.

(2) The regional education inspectorates shall be the local subdivisions of the Ministry of Education, Youth and Science in the management and monitoring of the public education

system.

(3) The regional educational inspectorates shall be legal entities. Their structure, functions and the municipalities within whose territory they are to perform their activities, shall be prescribed by Rules enacted by the Minister of Education, Youth and Science.

(4) The heads of regional educational inspectorates shall be civil servants appointed on a competitive basis and discharged by the Minister of Education, Youth and Science.

(5) The Minister of Education, Youth and Science shall appoint on competitive basis and discharge the experts who are civil servants at the regional educational inspectorates.

Article 36

(1) (Amended, SG No. 36/1998, previous Article 36, supplemented SG No. 90/2002) All municipalities shall be required to ensure and control:

1. (amended, Sg No. 78/2010, effective 2010/2011 school year) compulsory preschooling of children and compulsory schooling of students up to the age of 16;

2. (supplemented, SG No. 90/2002) health services and the safety of kindergartens and schools, of children and pupils by opening outpatient health offices;

3. (supplemented, SG No. 36/1998) funds for the maintenance, construction, furnishing and overhauling of schools, kindergartens and auxiliary units;

4. (new, SG No. 36/1998) the means requisite for the fulfilment of the state educational requirements as per Article 16, items 17 and 18, as well as for financing all sections of the curriculum in municipal kindergartens, schools and auxiliary units

5. (renumbered from item 4, SG No 36/1998, supplemented, SG No. 90/2002, SG No. 50/2008, amended and supplemented, SG No. 78/2010, effective 2010-2011 school year) conditions for canteen catering, organised according to the requirements stipulated in ordinances of the Minister of Health, for boarding houses, recreation, sports facilities and transport for children, students and teachers, as well as the free-of-charge transport under Article 26, Paragraph (3) and (4), as well as all-day organisation of studies and canteen catering under Article 26, Paragraph (5);

6. (renumbered from item 5, SG No 36/1998) scholarships and special grants to pupils.

(2) (New, SG No. 90/2002) Mayors of municipalities shall supervise the spending of the resources provided to municipal kindergartens, schools and auxiliary units.

Article 37

(1) Schools, kindergartens and auxiliary units shall be managed by principals.

(2) (Amended, SG No. 36/1998) All principals of kindergartens, schools and auxiliary units shall be required to have a bachelor's or a master's degree, and kindergarten and school principals shall also be required to have teaching practice.

(3) (Amended, SG No. 36/1998, supplemented, SG No. 35/2009, effective 12.05.2009, amended, SG No. 50/2010, effective school year 2011-2012) The Minister of Education, Youth and Science shall conclude and terminate the employment agreements with the principals of all state-owned kindergartens, schools and auxiliary units, of the state-owned sports schools - the Minister of Physical Education and Sports and of the kindergartens pursuant to article 10, paragraph 3 - the Minister of Defence.

(4) (Amended, SG No. 36/1998, SG No. 90/2002) The heads of the regional educational inspectorates shall conclude and terminate the employment agreements with the principals of municipal schools and auxiliary units.

(5) (Amended, SG No. 36/1998) The municipality mayors shall conclude and terminate the employment agreements with the principals of municipal kindergartens.

(6) (Amended, SG No. 36/1998) The position of a principal of a state-owned kindergarten, school and an auxiliary unit shall be filled on the basis of a competition held by the bodies under Paragraphs (3), (4) or (5) following the procedures prescribed under the Labour Code.

(7) (New, SG No. 90/2002) Representatives of the municipal administration designated by the mayor of the municipality shall participate in the commission for the competition held to recruit persons for the positions under Paragraph (4).

(8) (Repealed, amended, SG No. 36/1998, renumbered from Paragraph 7, amended, SG No. 90/2002, supplemented, SG No. 35/2009, effective 12.05.2009, SG No. 50/2010, effective school year 2011-2012) All administrative acts issued by the principals of state-owned kindergartens, schools and auxiliary units may be repealed by the Minister of Education, Youth and Science, of the heads of state-owned sports schools - the Minister of Physical Education and Sports, of the heads of state-owned kindergartens pursuant to article 10, paragraph 3 - the Minister of Defence, those issued by the principals of municipal schools and auxiliary units - by the head of the respective regional educational inspectorate, and those issued by the principals of municipal kindergartens - by the mayor of the respective municipality.

Article 38

(1) A school's Paedagogical Council shall be a specialised body tasked with discussing and solving essential educational issues.

(2) (Repealed, SG No. 36/1998).

(3) (Amended, SG No. 36/1998) The composition and functions of the paedagogical councils shall be determined by the Rules for the implementation of the Public Education Act and each school's Code of Practice.

(4) (New, SG No. 36/1998; repealed, SG No. 90/2002)

Article 39

(1) Any citizen holding a teaching certificate may be a teacher (supervisor).

(2) Teacher training shall be carried out within the system of higher education.

(3) Vocational training of students may be provided by persons educated in a given specialised domain as well.

(4) Teachers and principals shall be ensured opportunities and favourable conditions for raising their qualifications.

Article 40

(1) (Amended, SG No. 90/2002) Teachers (supervisors), principals and assistant principals in state-owned and municipal schools, kindergartens and auxiliary units shall provide the teaching and/or upbringing of children and pupils in accordance with this Act and the secondary legislation for its application.

(2) Employment agreements with assistant principals, teachers and staff shall be concluded by the school principal, the kindergarten principal or the director of the auxiliary unit, respectively.

(3) The establishment, changes and termination of employment relations as per Paragraph (2) above shall be effected in compliance with the Labour Code.

(4) (New, SG No. 36/1998) The positions of principal, assistant principal and teacher (supervisor) may only be filled by persons without previous effective conviction for premeditated crime/felony, who have not been barred from exercising their profession, nor have suffered from any disease and/or aberration posing a threat to the life or health of children and students, as specified in an ordinance enacted by the Minister of Education, Youth and Science in coordination with the Minister of Health.

(5) (New, SG No. 36/1998) Teachers shall be held in high respect and treated with deference by all students, the administrative bodies and the public. Offending the dignity of teachers or undermining their authority shall be inadmissible.

(6) (New, SG No. 41/2006) Teachers who have attained high achievements in the instruction and education of students shall be stimulated with honorary diplomas and rewards under the provisions of an Ordinance issued by the Minister of Education, Youth and Science in coordination with the Minister of Finance.

(7) (New, SG No. 41/2006) School principals who have attained high achievements in the management of their schools shall be stimulated with honorary diplomas and rewards under the provisions of the Ordinance under Paragraph 6.

Article 40a

(New, SG No. 50/2008)

(1) Teachers shall not be allowed to provide educational services for consideration, where a conflict of interests exists.

(2) School principals, assistant principals, heads and staff at the Regional Inspectorates for Education, staff at the Ministry of Education, Youth and Science, as well as municipal officers in the auxiliary units shall not be allowed to provide educational services for consideration.

(3) Within one month before the beginning of each school year, the persons under paragraph 1 shall submit a declaration in writing to the school principal as to whether they provided educational services during the previous school year as to the lack of any conflict of interests.

(4) Where a conflict of interests exists or in the case of failure to submit the declaration under paragraph 3 or submission of a declaration with misstatement of facts, the persons under paragraph 1 shall be held liable in a disciplinary procedure under the Labour Code.

(5) Where a violation is established under paragraph 2, the persons shall be held liable in a disciplinary procedure under the Labour Code or the Civil Servants Act respectively.

Article 40b

(New, SG No. 99/2011, effective 1.01.2012)

(1) In the course of performing their job responsibilities, individuals from the pedagogical staff in kindergartens, schools and servicing units shall be entitled to representative clothes for each calendar year under conditions and in accordance with a procedure determined by the Minister of Education, Youth and Science in coordination with the Minister of Finance.

(2) The funds for the representative clothes of the teaching staff shall be provided from the corresponding budget of the kindergarten, school or servicing unit.

Article 41

The funds needed for the support and development of public education shall be determined by the state budget passed by the National Assembly, and by the municipal budgets.

Article 42

(1) (Amended, SG Nos. 36/1998, 90/2002) The annual cost of education per child and per student in state-owned kindergartens, schools and auxiliary units shall be determined by the Ministry of Education, Youth and Science in coordination with the Ministry of Finance and in keeping with the state educational requirements as per Article 16, items 8 and 17 hereof.

(2) (New, SG No.50/2008) Protected schools shall receive additional financing under § 6f, paragraph 6 to ensure a full-fledged training process.

(3) (Renumbered from Paragraph 2, SG No. 50/2008) After endorsing the funds pursuant to Article 41, the Ministry of Education, Youth and Science shall allocate budgetary

means for capital investments, for subsidising scientific research in the field of education and for further training and qualification of teachers and principals.

(4) (Renumbered from Paragraph 3, SG No. 50/2008) The Ministry of Education, Youth and Science and the Ministry of Finance shall approve the standards and shall guarantee the regulators and other economic conditions for activities within the system of public education.

(5) (Renumbered from Paragraph 4, SG No. 50/2008) Funds for maintenance and wages shall be indicated on a separate line on education in the budget of the municipalities and of the Ministry of Education, Youth and Science.

(6) (Amended, SG No. 36/1998, renumbered from Paragraph 5, SG No. 50/2008) The Minister of Education, Youth and Science shall exercise control over the spending of public funds for maintenance and wages.

(7) (New, SG No. 36/1998, renumbered from Paragraph 6, SG No. 50/2008) All vocations and specialised training to be acquired in schools shall be specified in a list endorsed by the Minister of Education, Youth and Science in coordination with other respective ministers and heads of agencies and authorities.

Article 43

(1) (Previous Article 43 - SG No. 36/1998, amended, SG No. 90/2002) The Ministry of Education, Youth and Science shall ensure favourable conditions for identifying and training particularly gifted children. It shall establish furtherance funds to award scholarships to gifted children, as well as scholarship funds for children with chronic ailments and for children with special educational needs.

(2) (New, SG No. 36/1998) The Ministry of Education, Youth and Science shall ensure additional educational opportunities for potential drop-out students.

Article 44

(1) (Amended, SG No. 36/1998, SG No. 90/2002) The sources for the support and development of the facilities of kindergartens, schools and auxiliary units shall be provided from the state budget, municipal budgets, sources provided for in other laws and acts of the Council of Ministers and own resources.

(2) (Amended, SG No. 36/1998, SG No. 90/2002) The own resources shall be raised from the following sources:

1. rent paid for state-owned or municipal property;
2. rent paid for educational and sports facilities, machines and equipment owned by the respective kindergarten, school or auxiliary unit;
3. farmland and forests;
4. sale of registered indemnity vouchers and warrants;

5. sale of products and services generated in the course of practical training;

6. upgrading of qualifications and creative activities, educational and other services as stipulated in a Regulation issued by the Minister of Education, Youth and Science;

7. gifts, donations, fees and other sources.

(3) (New, SG No. 90/2002) The principals of the state-owned and municipal kindergartens, schools and auxiliary units shall draw up the budgets.

(4) (New, SG No. 36/1998, renumbered from Paragraph 3 - SG No. 90/2002) Funds raised under the terms of Paragraphs (1) and (2) above shall only be disbursed for the specific needs of the kindergarten, school or auxiliary unit that has raised and acquired them.

(5) (New, SG No. 36/1998, renumbered from Paragraph 4 - SG No. 90/2002) Fees shall be charged for any activities carried out in state-owned and municipal schools and auxiliary units outside the state educational requirements, as well as for the provision of post-secondary vocational training, under such terms and conditions as shall be prescribed in an executive order issued by the Minister of Education, Youth and Science.

(6) (Renumbered from Paragraph 3, SG No 36/1998, renumbered from Paragraph 5, SG No 90/2002) The activities of the auxiliary units in the public education system shall be carried out in conformity with specific economic rules endorsed by the Minister of Education, Youth and Science in coordination with the Minister of Finance.

(7) (New, SG No. 36/1998; repealed, SG No. 153/1998, renumbered from Paragraph 6, supplemented, SG No. 90/2002) Funds from the state budget and from the municipal budgets shall be made available to kindergartens, schools and auxiliary units serving the system of public education in keeping with such criteria as shall be set by the respective financing body and in accordance with Article 16, items 17 and 18 hereof.

(8) (New, SG No. 36/1998; amended, SG No. 90/2002) Ministries, agencies and municipalities may not reduce the amount of the subsidies granted to state-owned and municipal kindergartens, schools and auxiliary units serving the system of public education under the terms and provisions of Article 7, Article 41, and Article 42, Paragraph (1) hereof as a compensation for their own revenues generated through activities as per Paragraphs (2) and (5) above.

(9) (New, SG No. 50/2008) The principal shall be held liable in a disciplinary procedure under the Labour Code at the proposal of the financial authority, where the debts past due of the respective school, kindergarten or auxiliary unit exceed 20 percent of the expenditures approved for the current year.

Article 45

(1) (Previous Article 45 - SG No. 90/2002) Municipal budgetary means, as well as means from the funds of all organisations for whose needs personnel is trained, and moneys from other sources, shall also be employed in the construction, reconstruction and modernisation of the physical resources and technical equipment of schools, kindergartens

and auxiliary units.

(2) (New, SG No. 90/2002, amended, SG No. 78/2010) Property or parts of it and objects, released as a result of the closure or re-organisation of state-owned and municipal schools, kindergartens and auxiliary units shall be used for educational, health, social or humanitarian activities following the procedure under the State Property Act, the Municipal Property Act and the secondary legislation regulating the implementation hereof.

Article 46

(Repealed, SG No. 36/1998)

Chapter Six (New, SG No. 90/2002) TRUSTEESHIP

Article 46a

(New SG No. 90/2002)

(1) (Amended, SG, No. 105/2006, effective 1.01.2007) Trusteeships shall be independent voluntary associations to support the development of and provision of facilities to schools, kindergartens and auxiliary units under Article 33a, Paragraph (1), item 2.

(2) Schools, kindergartens or auxiliary units under Paragraph (1) may have one Trusteeship each.

(3) Trusteeships may be established also at groups of schools, kindergartens or auxiliary units in communities where no trusteeship has been established under Paragraph (2).

Article 46b

(New SG No. 90/2002)

Trusteeships shall be established as not-for-profit legal entities acting for public benefit and they shall organise their activities under the terms and conditions stipulated in the Not-for-profit Legal Entities Act and in compliance with the provisions of this Act, and their Articles or Memorandum of Association.

Article 46c

(New SG No. 90/2002)

With a view to attaining their objectives, trusteeships shall:

1. discuss and make proposals to the respective authorities for the development or resolving of current problems of schools, kindergartens or auxiliary units;
2. assist the raising of additional financial and material resources for the schools,

kindergartens or auxiliary units and supervise their proper spending;

3. support the establishment and support of the facilities of schools, kindergartens or auxiliary units;

4. participate in the selection of textbooks by the Teachers' Council to be used in the education of the pupils at school and provide, if possible, for their purchase;

5. assist the organisation of the supply of food to pupils, the provision of transportation and the resolving of other social problems of children, pupils and teachers at schools, kindergartens or auxiliary units;

6. assist the development and implementation of educational programmes geared to the problems of children and pupils;

7. assist school and municipal authorities in the delivery of the compulsory schooling;

8. assist the implementation of extracurricular forms, organised recreation, tourism and sports events with children and pupils;

9. assist the involvement of parents in the organisation of leisure time of children and pupils;

10. propose measures for the improvement of the activities of schools, kindergartens or auxiliary units;

11. organise the general public to assist kindergartens, schools or auxiliary units;

12. report violations in the public education system to the competent authorities;

13. organise and support the training of parents on issues related to the upbringing and development of their children;

14. assist schools in counteracting drug addictions and other harmful influences on children and pupils;

15. assist socially disadvantaged children and pupils;

16. assist commissions for combating anti-social behaviour of minors.

Article 46d

(New SG No. 90/2002)

(1) Trusteeships shall be established at the initiative of principals of kindergartens, schools or auxiliary units, or parents, teachers or public figures.

(2) The persons under Paragraph 1 shall send out invitations for participation in the constituent meeting through the mass media and/or personally by prominent public figures, donors or representatives of legal entities.

Article 46e

(New SG No. 90/2002)

(1) The bodies of the trusteeship shall be the General Assembly and the Board of Trustees.

(2) The General Assembly shall elect the members of the Board of Trustees for a term of office of up to four years.

(3) The Board of Trustees shall elect a Chairperson from among its membership.

Article 46f

(New SG No. 90/2002)

Principals of kindergartens, schools or auxiliary units shall provide the trusteeship with appropriate premises for its activities free of charge.

Chapter Seven PENALTY PROVISIONS (Previous Chapter 6, SG No. 90/2002)

Article 47

(Amended and supplemented, SG No. 36/1998, amended, SG No. 90/2002, supplemented, SG No. 78/2010, effective 2012-2013)

Parents, guardians or custodians who fail to ensure their children's attendance at the kindergartens and at school while liable to compulsory preschool education or schooling, shall be penalised by a fine amounting from BGN 20 to BGN 100. In the event the offence is repeated, the penalty shall amount from BGN 50 to BGN 250.

Article 48

(1) (Amended, SG No. 36/1998) Punishable offences shall be ascertained by way of written statements drawn up by the respective bodies of the municipalities.

(2) Penalty decrees shall be issued by the mayor of the municipality.

(3) The establishment of violations, the issuance, appeal and execution of penal decrees shall be effected in compliance with the Administrative Violations and Sanctions Act.

Article 48a

(New, SG No. 36/1998)

(1) Punishable by a fine amounting to BGN 5000 shall be any natural person or legal

entity who:

1. has engaged activities of raising and educating minors in any facility that has not been opened under the terms stipulated herein;

2. has organised and provided student training for the purpose of issuing documents certifying the completion of a school grade or of an educational degree, as well as for the purpose of issuing certificates of vocational qualifications, in any facility that has not been opened under the terms stipulated herein.

(2) In the event the punishable offence under Paragraph 1 is repeated, the penalty shall amount to BGN 10 000.

(3) The written statements ascertaining such offences shall be drawn up by the respective bodies of the Ministry of Education, Youth and Science, and penal decrees shall be issued by the Minister of Education, Youth and Science or by other officials duly authorised by the Minister. The provisions of the Administrative Violations and Sanctions Act shall be applicable to the drawing of written statements, as well as to the issuance, appeal and execution of penal decrees.

Article 49

The Ministry of Education, Youth and Science, in coordination with the Ministry of Finance, shall exercise control over the spending of budgetary and extra-budgetary means intended for the training of pupils, for the construction, reconstruction and modernisation of school facilities, as well as for other activities within the system of public education.

SUPPLEMENTARY PROVISIONS

§ 1. (1) (New, SG No. 36/1998) The Minister of Education, Youth and Science shall determine by enactment of an executive order those kindergartens, schools and auxiliary units that shall be state-owned in the sense of Article 10, Paragraph (2) hereof in accordance with the criteria stipulated in the Rules for the implementation of this Act.

(2) The Ministry of Education, Youth and Science shall produce and keep a register of all state-owned kindergartens, of all state-owned and municipal schools and auxiliary units, of the kindergartens and schools provided for in Articles 11 and 12 hereof, and of the religious schools provided for under Article 30 hereof.

(3) (New, SG No. 90/2002, effective 2003/2004 school year; amended, SG No. 29/2003) The Minister of Education, Youth and Science shall issue an order to approve no more than three textbooks, for the public education system, in the same subject for each grade that need to be valid for a period not less than the one specified under Article 14 of the Educational Level, General Educational Minimum and Curriculum Requirements Act, having ascertained their conformity with the state educational requirements under Article 16, items 3, 7 and 9.

(4) (New, SG No. 90/2002, effective 2003/2004 school year; amended, SG No. 29/2003) The Minister of Education, Youth and Science shall issue an order to approve teaching aids for the public education system, and the Minister of Culture - teaching aids for

the arts and culture, once their conformity to state educational requirements under art. 16, items. 3, 7, and 9 has been ascertained.

(5) (New, SG No. 29/2003) The Minister of Culture shall approve with an Order no more than three textbooks in the same subject for each grade that need to be valid for a period not less than the one specified under Article 14 of the Educational Level, General Educational Minimum and Curriculum Requirements Act and falling under the mandatory training programme for the arts and culture, once their conformity with state educational requirements under art. 16, items. 3, 7, and 9 has been ascertained.

(6) (New, SG No. 29/2003) Textbooks to be used in more than one grade may be approved for subjects in vocational training following the procedure under Paragraphs. 3 and 5.

§ 1a. (Renumbered from § 1, SG No. 36/1998) In the secondary military schools under the Ministry of Defence, the Ministry of Interior and other ministries and departments, this Act shall be enforced insofar as there are no other provisions in their statutes and in the special acts concerning their constitution and activities.

§ 1b. (New SG No. 41/2006) (1) The state plan-quota for admission in the schools under Article 26, Paragraph 1, item 12, shall be endorsed by the Minister of Culture.

(2) The Minister of Culture and the Minister of Education, Youth and Science shall adopt an ordinance on the terms and procedure for determining the state plan-quota for admission in the schools under Paragraph 1.

§ 2. Bulgarian state-owned schools abroad shall be opened, and their activities shall be organised, by the Ministry of Education, Youth and Science in compliance with this Act and with all relevant international agreements.

§ 3. This Act shall be applicable with respect to any Bulgarian citizens studying in Bulgarian state-owned schools abroad.

§ 4. (1) Foreign citizens shall have the right to study in Bulgarian schools in conformity with the statutes and the secondary legislation applicable in the Republic of Bulgaria.

(2) (Amended, SG No. 36/1998) School education shall be free of charge for such foreign nationals who:

1. (Supplemented, SG No. 9/2011) have been granted the right to permanent residence in Bulgaria, as well as who are schoolchildren at a mandatory school age and are members of the family of a foreigner who has been granted the right to long-term residence in Bulgaria;

2. have been admitted by acts of the Council of Ministers;

3. have been admitted under intergovernmental agreements where this issue has been specifically regulated.

4. (new - SG No. 105/2006, effective as of the date of the coming into force of the

Accession Treaty of the Republic of Bulgaria to the European Union - 1.01.2007) students in the mandatory school age who are children of nationals from Member States of the European Union, of the European Economic Area and Switzerland, working on the territory of the Republic of Bulgaria, when they live in the country together with their parents or legal guardians.

(3) (Supplemented, SG No. 36/1998) Foreign citizens shall also be entitled to study in Bulgarian schools both in the country and abroad against payment. The Minister of Education, Youth and Science shall approve the amount of fees to be paid by foreign nationals studying in state-owned and municipal schools. The funds shall be used for the purposes of the educational process in the schools where such foreign nationals are trained.

§ 4a. (New, SG No. 105/2006, effective as of the date of the coming into force of the Accession Treaty of the Republic of Bulgaria to the European Union - 1.01.2007) The students in the mandatory school age who are children of nationals from Member States of the European Union, of the European Economic Area and Switzerland, working on the territory of the Republic of Bulgaria, when they live in the country together with their parents or legal guardians, shall be entitled to free teaching of the Bulgarian language, as well as instruction in the maternal language and culture, in cooperation with the states of origin in compliance with conditions and procedures stipulated by the Minister of Education, Youth and Science.

§ 5. (Amended, SG No. 90/2002) The documents for completed school education, educational levels and vocational qualifications issued by schools of foreign States shall be recognised under the terms and conditions stipulated in a Regulation of the Minister of Education, Youth and Science.

§ 6. Foreign citizens shall be entitled to teach in Bulgarian schools under such terms and conditions as shall be specified by the state educational requirements.

§ 6a. (New, SG No. 90/2002; amended, SG No. 29/2003) The Ministry of Education, Youth and Science shall levy fees in amounts specified in a Tariff approved by the Council of Ministers, as follows:

1. For the examination of a request for opening or transformation of a private kindergarten or private school; the fee shall be determined depending on the type of kindergarten or school and shall cover costs for assessing compliance of stated facts, circumstances, and documents submitted to opening or transformation requirements applicable to private kindergartens or private schools;

2. For issuing permits or passing a decision for the opening or transformation of a private kindergarten or private school and for subsequent amendments thereto; the fee shall be determined depending on the type of kindergarten or school and shall cover costs for their preparation;

3. For the examination of applications for approval of a textbook or teaching aid for the public education system; the fees shall cover costs for the inspection of documents submitted;

4. For the assessment of a textbook or teaching aid for compliance to state educational requirements under Article 16, items. 3 and 9;

5. For the recognition of documents certifying the completion of a training stage in school or an educational and vocational qualification level, issued by a school in another state, as well as for issuing certificates; fees shall be determined depending on the recognised training stage in school, the educational and vocational qualification level, and shall cover costs for the inspection of documents and for the expert appraisal comparing the duration of training, the type of school where such training has been delivered, and the subjects studied, to requirements under applicable normative acts, curricula and training programmes in force within the public education system.

§ 6b. (New, SG No. 29/2003) With regard to operations for the approval of textbooks and teaching aids for the compulsory training in the arts and culture following the procedure under § 1, Paragraphs 4 and 5, the Ministry of Culture shall levy fees as determined in a Tariff approved by the Council of Ministers.

§ 6c. (1) (New, SG No. 90/2002, previous § 6b, SG No. 29/2003, previous text of § 6c, SG No. 50/2008, amended, SG No. 78/2010, effective 2010-2011 school year) "Community school" within the meaning of this Act shall be the school under Article 26, Paragraph 1, items 1-4 or 6 located in the nearest settlement of the municipality and offering education to pupils from settlements without a school.

(2) (New, SG No. 50/2008) The list of community schools shall be approved in an act of the Council of Ministers at the proposal of the respective Municipal Councils.

(3) (New, SG No. 50/2008) The criteria for the selection of schools to be put on the list of community schools shall be specified in the act of the Council of Ministers.

(4) (New, SG No. 50/2008) The list under paragraph 1 shall be updated annually before 1 October of the respective year and published on the official website of the Ministry of Education, Youth and Science.

(5) (New, SG No. 50/2008, amended, SG No. 78/2010, effective 2010-2011 school year) The Council of Ministers shall adopt the financial rules for the spending of the resources allocated for the additional financing to ensure the education of travelling pupils at the schools under paragraph 2, including the expenditures under Article 26, paragraphs 4 and 5 for:

1. transportation;
2. all-day organisation of studies;
3. (supplemented, SG No. 78/2010, effective 2010-2011 school year) food at the canteen, organised according to the requirements stipulated in ordinances of the Minister of Health.

(6) (New, SG No. 50/2008) A community school under paragraph 2 which is also eligible to become a protected school shall be put also on the list under § 6f, paragraph 2.

§ 6d. (New, SG No. 90/2002) "Educational service" within the meaning of Article 44, Paragraph 2 shall be the education and upbringing of children and pupils beyond their studies, including that on subjects taught at school, without the awarding of educational level or

professional qualifications.

§ 6e. (New, SG No.50/2008) "Conflict of interests" within the meaning of Article 40a, paragraph 1 exists, where the educational services for consideration are provided to pupils studying at the school in which the teacher teaches, except for the cases under Article 44, paragraph 2, item 6.

§ 6f. (New, SG No.50/2008) (1) "Protected school" is a school the closing down of which would impair the access to education.

(2) The criteria for selection of protected schools and the list of protected schools shall be adopted with an act of the Council of Ministers.

(3) The schools under paragraph 2 shall be designated, taking into consideration the objective geographical and demographic factors, the availability of road infrastructure, and the distance from the school to the nearest other school.

(4) The list under paragraph 2 shall be updated annually and published on the official website of the Ministry of Education, Youth and Science.

(5) The protected school status shall be granted also to a school which, if closed down, would prevent its pupils from studying at the nearest community school due to the lack of capacity or inability to meet the health and sanitary requirements therein.

(6) Protected schools shall not be closed down. Protected schools shall receive additional financing under the terms and conditions specified in an act of the Council of Ministers.

TRANSITIONAL AND FINAL PROVISIONS

§ 7. Students enrolled in the secondary vocational technical schools, the technical schools, the arts schools, the specialised gymnasiums, as well as in the secondary level of general education schools prior to the enactment hereof, shall be trained and shall complete their education in compliance under the law applicable at the time of their enrolment.

§ 8. (1) Within one year of this Act's entry into force, the state bodies shall ensure the standards, regulators and other economic conditions for the activities in the system of public education in conformity with the current legal basis.

(2) Until the adoption of the new state educational requirements, schools and kindergartens shall perform their activities in conformity with the currently applicable requirements.

§ 9. (Amended SG No. 90/1996) The currently appointed principals of schools, principals of kindergartens and directors of auxiliary units shall retain their rights until the announcement of a competition for the respective position, but not exceeding 7 years after this Act's entry into force.

§ 10. This Act shall rescind:

1. The Public Education Act (promulgated, SG No. 218/1948; corrected, No. 223/1948; amended and supplemented, SG No. 235/1948, 10, 207 & 271/1950; SG No. 75 & 104/1951 and partially repealed, No. 90/1954).

2. The Act on closer links between school and life and on the continued development of public education in the People's Republic of Bulgaria (promulgated, SG No 54/1959; amended, SG Nos. 99/1963, 36/1979, 27/1986, 68/1988, 45 & 99/1989).

3. Decree No. 330 on Public Education (prom., SG No. 90/1954; amended, SG No. 33/1965 and 68/1988).

4. Decree No 2213 on the continued development of education (SG No 59/1983).

§ 11. (1) The responsibility for enforcing this Act shall be hereby entrusted to the Minister of Education and Science.

(2) (Repealed, SG No. 40/2004).

(3) (Repealed, SG No. 36/1998).

This Act was submitted to a vote and duly adopted by the Grand National Assembly on October 1, 1991, and the State Seal has been affixed thereto.

Act to Amend and Supplement the Public Education Act

Promulgated, SG No. 36/1998

ADDITIONAL PROVISIONS

§ 34. "Repeated" in the sense of Article 47 and Article 48a, Paragraph (2) hereof, shall be any offence committed within two (2) years of the entry into force of the penal decree whereby a person has been penalised for the same offence.

§ 35. (Repealed, SG No. 113/2007).

TRANSITIONAL AND FINAL PROVISIONS

§ 36. (1) Within one (1) year of this Act's entry into force, the Council of Ministers shall submit to the National Assembly the bills provided for under Article 16, items 2 and 6.

(2) The provisions of Article 24, item 1 shall be effective and enforceable as of the entry into force of the statutes provided for under Article 16, items 2 and 6.

§ 37. Within six (6) months of this Act's entry into force, the Minister of Education and Science, in coordination with the Minister of Health, shall enact the ordinance provided for under Article 40, Paragraph 4.

§ 38. (1) The Minister of Education and Science shall enact the executive order provided for under § 1, Paragraph 1 of the additional provisions within six (6) months of this Act's entry into force.

(2) The provisions of Article 37, Paragraph 3 regarding the state-owned kindergartens and of Article 37, Paragraph 4 shall become applicable and enforceable following the enactment of the executive order as per Paragraph 1 above.

(3) The list provided for under Article 42, Paragraph 6 shall be drafted within one (1) year of this Act's entry into force.

§ 39. The Minister of Education and Science shall enact new Rules for the implementation of the Public Education Act within one (1) year of this Act's entry into force.

§ 40. The wording "Ministry of Public Education" shall be replaced by "Ministry of Education and Science", and the wording "Minister of Public Education" shall be replaced by "Minister of Education and Science", respectively, throughout the Act.

Lev Re-denomination act

Transitional and final provisions

(SG No. 20/1999, supplemented, SG No. 65/1999, effective 5.07.1999)

.....

§ 4. (1) (Supplemented, SG No. 65/1999) Upon the entry of this Act into force, all figures expressed in terms of BGN, as indicated in the laws which will have entered into force prior to the 5th day of July 1999, shall be replaced by figures expressed in terms of BGN, reduced by a factor of 1,000. The replacement of all figures expressed in BGN, reduced by a factor of 1,000, shall furthermore apply to all laws passed prior to the 5th day of July 1999, which have entered or will enter into force after the 5th day of July 1999.

(2) The authorities which have adopted or issued any acts of secondary legislation that will have entered into force prior to the 5th day of July 1999 and that contains figures expressed in BGL, shall amend the said acts to bring them in conformity with this Act so that the amendments apply as from the date of entry of this Act into force.

.....

§ 7. This Act shall enter into force on the 5th day of July 1999.

Act to Amend and Supplement the Public Education Act

Promulgated State Gazette No. 90/2002,

amended, SG No. 29/2003; 71/2003, 40/2004

TRANSITIONAL AND FINAL PROVISIONS

§ 29. (Amended, SG No. 71/2003) Existing heads of educational inspectorates and experts at the educational inspectorates as of the effective date of this Act, who have not passed competitive examinations under the Civil Servants Act, shall retain their rights

pending the announcement of a competition for the position, as provided for in the Civil Servants Act

§ 30. (1) Existing trusteeships as of the effective date of this Act shall adjust their Articles or Memorandums of Association to the provisions of Chapter Six and the Non-profit Legal Persons Act within a year after the effective date of this Act.

(2) Within the time limits under Paragraph 1, trusteeships shall serve applications for entry into the Central Register of Not-for-profit Legal Entities Acting for Public Benefit at the Ministry of Justice.

§ 31. (1) (Amended, SG No. 29/2003, repealed, SG No. 40/2004)

(2) (New, SG No. 29/2003) Students who were admitted to the 9th grade in the 1999-2000 academic year, including those who were admitted in the 1998-1999 academic year after the 7th grade to classes with intensive study of a foreign language, based in profiled high schools, profiled and vocational classes in high schools, and in high general educational schools, and those admitted after the 7th grade to vocational colleges, high schools, and arts schools, who successfully graduate from the 12th grade in the 2002-2003 academic year, shall qualify for high school education and shall obtain diplomas following the terms and conditions of this act without sitting for state matriculation examinations under Article 24, Paragraphs 1 and 2.

(3) (New, SG No. 29/2003) If they so wish, they shall be entitled to sit for state matriculation examinations under Article 24, Paragraphs. 1 and 2.

(4) (New, SG No. 29/2003) Students under Paragraph 2 shall not sit for matriculation examinations listed in the training programme of the school in force as of their admission.

(5) (New, SG No. 29/2003) The high school education diploma shall state in terms of grades at matriculation examinations the average of the annual grades in Bulgarian language and literature and in a subject chosen by the student falling into the training programme of the school, which is studied at the high school stage of training, as well as grades at state matriculation examinations, if those have been successfully passed following the procedure under Paragraph 3.

(6) (New, SG No. 29/2003) Grades at matriculation examinations listed following the procedure under Paragraph 5 may be altered by students following the terms and conditions stipulated in the Regulations for the Implementation of the Public Education Act.

(7) (New, SG No. 29/2003) Individuals who have qualified for high school education and have obtained a secondary education diploma following the procedure under Paragraph 2, shall have the rights of individuals who have qualified for high school education and have obtained a diploma under Article 24, Paragraph 1.

(8) (New, SG No. 29/2003) A diploma for students who have qualified for high school education following the procedure under Paragraph 2 shall be final and shall allow them to continue their education or enlist for vocational training.

.....

§ 34. (Amended, SG No. 40/2004) Within six months after the effective date of this Act, the Council of Ministers shall adopt the National Plan for Integration of Children with Special Educational Needs and/or Chronic Diseases in the Public Education System at the proposal of the Ministry of Education and Science.

§ 35. This Act shall enter into force on the date of its promulgation in the State Gazette, except for Paragraphs 4, 5, 6 and § 28, item 1, which shall enter into force as from the 2003/2004 academic year.

The 39th National Assembly adopted this Act on 10 September 2002, and the State Seal has been affixed thereto.

Act on the Amendment and Supplement

to the Public Education Act

Promulgated State Gazette No. 29/2003

TRANSITIONAL AND FINAL PROVISIONS

§ 5. Textbooks that have been approved by Order of the Minister of Education and Science and of the Minister of Culture prior to the entry into force of this Act shall continue to be used until new textbooks are approved following the procedure under § 1, Paragraphs 3 and 5 of the Supplementary Provisions to the Public Education Act.

§ 6. Within two months of the entry into force of this Act, the Council of Ministers shall approve:

1. A Tariff under § 6a - upon proposal of the Ministry of Education and Science;
2. A Tariff under § 6b - upon proposal of the Ministry of Culture.

Act on the Amendment and Supplement

to the Public Education Act

Promulgated State Gazette No. 40/2004

TRANSITIONAL AND FINAL PROVISIONS

§ 5. (1) Students who completed the twelfth (12th) grade successfully during the 2003-2004 and 2004-2005 academic years shall acquire secondary education and receive a diploma under the terms and conditions stipulated in this Act without sitting for the state matriculation examinations under Article 24.

(2) The students under Paragraph 1 shall have the right to opt to sit for state matriculation examinations pursuant to Article 24, whereby the state matriculation examination in the Bulgarian language and literature shall be offered in two equivalent examination versions. Students shall sit for the state matriculation examination in the Bulgarian language and literature in the version of their choice.

(3) Students who completed the twelfth (12th) grade successfully during the 2003-2004 and 2004-2005 academic years shall not sit for matriculation examinations, where such

examinations were envisaged in the curriculum of the school at the time of their admission.

(4) The secondary education diploma shall specify the average score of the annual grades in the Bulgarian language and literature and in the subject of the student's choice from the compulsory classes as grades from matriculation examinations, as well as the grades from the state matriculation examinations, where the latter have been passed successfully under Paragraph 2.

(5) The persons who have acquired secondary education and have received a secondary education diploma under Paragraph 1 shall enjoy equal rights with the persons who have acquired secondary education and have received a diploma under Article 24, Paragraph 1.

(6) The diploma of the students who have acquired secondary education under Paragraph 1 shall be conclusive and shall entitle its holder to post-secondary education or to vocational training.

.....

§ 7. (1) Within six months from the entry into force of this Act, the Council of Ministers shall adopt Regulations on the enforcement of the Public Education Act.

(2) Until the entry into force of the Regulations under Paragraph 1, the Regulations on the enforcement of the Public Education Act, issued by the Minister of Education and Science (New, SG No. 68/1999; amended, No. 19/2000, No. 53/2001, Nos. 7 and 68/2002, Nos. 19 and 33/2003; corrected No. 48/2003; amended Nos. 65 and 99/2003, No. 15/2004).

Act to Amend and Supplement the Tourism Act

TRANSITIONAL AND FINAL PROVISIONS

(SG No. 28/2005, effective 1.04.2005)

§ 14. The statutory instruments of secondary legislation on the enforcement of the Protection and Promotion of Culture Act, the Public Education Act, the People's Chitalishte Act, the Monuments of Culture and Museums Act, the Vocational Education and Training Act and the Film Industry Act, issued by or together with the Minister of Culture prior to the entry of this Act into force, shall continue in effect.

.....

§ 20 Throughout the Public Education Act Promulgated SG No. 86/1991, amended SG No. 90/1996; 36, 124 and 153/1998; 67 and 68/1999; 90 and 95/2002; 29, 71, 86 and 114/2003; amended and supplemented, SG No. 40/2004) the words "Minister of Culture" and "Ministry of Culture" shall be replaced, accordingly, by "Minister of Culture and Tourism" and "Ministry of Culture and Tourism".

TRANSITIONAL AND FINAL PROVISIONS

to the Act Amending and Supplementing

the Tourism Act.

(SG, No. 94/2005, effective 25.11.2005)

§ 69. The secondary regulatory acts on the implementation of the Protection and Promotion of Culture Act, the Public Education Act, the People's Chitalishte Act, the Monuments of Culture and Museums Act, the Vocational Education and Training Act, the Film Industry Act, issued by or jointly with the Minister of Culture and Tourism prior to the entry into force of this act, shall remain valid.

.....

§ 73. Throughout the text of the Public Education Act (published in SG, No. 86/1991; amended, No. 90/1996, No. 36, 124 and 153/1998, No.67 and 68/1999, No. 90 and 95/2002, No. 29, 71, 86 and 114/2003, No.40/2004 and No.28/2005) the phrases "Minister of Culture and Tourism" and "Ministry of Culture and Tourism" shall be replaced by "Minister of Culture" and "Ministry of Culture", respectively.

TRANSITIONAL AND FINAL PROVISIONS

to the Act amending and supplementing

the Public Education Act

(SG No. 41/2006, amended, SG No. 105/2006, SG No. 50/2008)

§ 8. (Amended, SG No. 105/2006, repealed, SG No. 50/2008).

§ 9. Within six months after the entry into force of this Act, the Minister of Education and Science and the Minister of Culture shall endorse criteria for acquiring the status of a state-owned school for culture.

§ 10. Within six months of the entry into force of this Act, the Minister of Education and Science shall endorse criteria for evaluating the performance of school teachers and principals.

TRANSITIONAL AND FINAL PROVISIONS to the Act Amending and Supplementing

the National Education Act

(SG No. 105/2006)

§ 8. (1) As of 1 January 2007, the state and municipal auxiliary units performing a social function - homes for the upbringing and education of children deprived of parental care - shall be transformed from auxiliary units in the national education system into specialised institutions for providing social services - homes for children, financed as activities delegated by the State to the municipality on whose territory they are located.

(2) The homes under Paragraph 1 shall be transferred to be governed by the Mayor in

the respective municipality, who shall also be the employer of their staff.

(3) The employment relations of the workers and employees from the transformed auxiliary units under Paragraph 1 shall be regulated pursuant to Article 123 of the Labour Code.

(4) The assets, the liabilities, the other rights and obligations, as well as the archives of the auxiliary units under Paragraph 1 shall be covered by the respective specialised institutions for providing social services.

(5) With the transformation of the auxiliary units under Paragraph 1, the property and objects made available to them which are public state property shall become public municipal property of the respective municipality on the territory of which they are located.

(6) The organisation and the activities of the homes for children under Paragraph 1 shall be determined by Regulations issued by the Minister of Labour and Social Policy in coordination with the Minister of Education and Science.

.....

§ 10. Within three months of the coming into force of this Act, the Minister of Labour and Social Policy in coordination with the Minister of Education and Science shall issue the Regulations under § 8, Paragraph 6.

§ 11. Paragraphs 3 and 4 shall come into forces on 1 January 2007, and §§ 5 and 6 - as of the date of entry into force of the Accession Treaty of the Republic of Bulgaria to the European Union.

TRANSITIONAL AND FINAL PROVISIONS

to the Act amending and supplementing the Public Education Act

(SG No. 50/2008)

§ 10. The provisions of Article 4a, paragraph 2 shall not apply to the organisation and conduct of the state matriculation examinations under Article 24 in the 2007-2008 school year.

.....

§ 12. The declaration under Article 40a, paragraph 3 for the 2006-2007 school year shall be submitted within a month of the date of entry into force of this Act.

§ 13. Within three months of the date of entry into force of this Act, the Council of Ministers shall adopt the acts under § 7, item 2 (concerning § 6c, paragraphs 2, 3 and 5) and under § 8 (concerning § 6f, paragraph 2).

TRANSITIONAL AND FINAL PROVISIONS

to the Act amending and supplementing the Vocational Education

and Training Act

(SG No. 74/2009, effective 15.09.2009)

§ 3. In the Public Education Act (Promulgated, SG, No. 86/1991, amended, No. 90/1996, No. 36, 124 and 153/1998, No. 67 and 68/1999, No. 90 and 95/2002, No. 29, 71, 86 and 114/2003, No. 40/2004, No. 28, 94, 103 and 105/2005, No. 41 and 105/2006, No. 113/2007, No. 50/2008, No. 35 and 36/2009) the words "the Minister of Education and Science", "Minister of Education and Science", and "Ministry of Education and Science", shall be replaced by "the Minister of Education, Youth and Science", "Minister of Education, Youth and Science", and "Ministry of Education, Youth and Science".

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TRANSITIONAL AND FINAL PROVISIONS

to the Act amending and supplementing

the Physical Education and Sports Act

(SG No. 50/2010)

.....

§ 62. Paragraphs 20, 21, § 48, item 1, § 52, item 1 and 3 and § 56 shall become effective school year 2011-2012.

TRANSITIONAL AND FINAL PROVISIONS to the Act amending and supplementing the Public Education Act

(SG No. 78/2010, effective 5.10.2010)

§ 9. Within the beginning of 2012-2013 school year the municipalities shall create the necessary conditions for carrying out compulsory preschooling under Article 20, Paragraph 1 in accordance with the requirements under this Act and the secondary legislation regulating its implementation hereof.

§ 10. (1) Within the term under § 9 preschooling under Article 20, paragraph 1 is compulsory for children who have attained the age of 6 in the respective calendar year and are liable to compulsory preschooling

(2) Within the term under § 9 the provisions of Article 20, Paragraph 1 shall apply to children who have attained the age of 5 in the respective calendar year and are subject to compulsory preschool education only in settlements and municipalities that have ensured the conditions for carrying out preschool education in accordance with the requirements under Article 20, Paragraphs 3 and 4, following a decision by the respective municipal council and at consulting their parents and guardians and their ability for maximum inclusion of the children who have attained the age of 5 in the preschool education.

§ 11. This Act shall enter into force on the date of its promulgation in the State Gazette, except for:

1. paragraphs 1, 4, 5, and 8, which shall enter into force as of 2010/2011 school year
2. paragraph 7, which shall enter into force as of 2010/2011 school year